

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                     |                           |                                                        |                                               |                                 |
|---------------------------------------------------|-----------------------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Rolando Vasquez                  | Team:<br>Squad #05                                  | CCRB Case #:<br>201710184 | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                     |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 12/01/2017 7:45 PM    | Location of Incident:<br>28th Precinct Stationhouse | 18 Mo. SOL<br>6/1/2019    | Precinct:<br>28                                        |                                               |                                 |
| Date/Time CV Reported<br>Fri, 12/01/2017 10:30 PM | CV Reported At:<br>IAB                              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 12/08/2017 11:32 AM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. An officer        |        |        | 028 PCT |
| 2. SGT Frank Arnedos | 1377   | 934417 | 028 PCT |
| 3. SGT Freddy Lopez  | 05327  | 930587 | 028 PCT |

| Witness Officer(s)         | Shield No | Tax No | Cmd Name |
|----------------------------|-----------|--------|----------|
| 1. POM Johnpaul Pennacchia | 09573     | 948115 | 028 PCT  |
| 2. POM Petr Janak          | 29315     | 945848 | 028 PCT  |
| 3. POM Michael Dappolonia  | 14158     | 952637 | 028 PCT  |

| Officer(s)            | Allegation                                                                      | Investigator Recommendation |
|-----------------------|---------------------------------------------------------------------------------|-----------------------------|
| A . SGT Frank Arnedos | Discourtesy: Sergeant Frank Arnedos acted discourteously toward § 87(2)(b)      | A . Unsubstantiated         |
| B . SGT Freddy Lopez  | Abuse: Sergeant Freddy Lopez refused to provide his shield number to § 87(2)(b) | B . Unfounded               |
| C . An officer        | Abuse: An officer refused to provide his shield number to § 87(2)(b)            | C . Officer(s) Unidentified |
| D . An officer        | Discourtesy: An officer spoke discourteously to § 87(2)(b)                      | D . Officer(s) Unidentified |

### Case Summary

This complaint was filed by § 87(2)(b) on December 1, 2017 by phone with IAB. The complaint was received by the CCRB on December 8, 2017 under IAB Log #§ 87(2)(b).

On December 1, 2017, at approximately 7:45 p.m., § 87(2)(b) went to the 28<sup>th</sup> Precinct stationhouse in Manhattan. § 87(2)(b) went to the stationhouse to pick up his children pursuant to a custody agreement. § 87(2)(b)'s ex-wife refused to give the children to § 87(2)(b). Sgt. Frank Arnedos escorted § 87(2)(b)'s ex-wife and the children out of the stationhouse. Afterwards, Sgt. Arnedos allegedly waved at § 87(2)(b) mockingly (**Allegation A: Discourtesy, unsubstantiated**). Sgt. Freddy Lopez and an officer allegedly refused to provide their shield number to § 87(2)(b) (**Allegation B-C: Abuse of Authority, unfounded/officer unidentified**). § 87(2)(b) was placed under arrest. An officer allegedly called § 87(2)(b) an “asshole” (**Allegation D: Discourtesy, officer unidentified**).

There is no video evidence of this incident.

§ 87(2)(b) was arrested as a result of this incident and charged with § 87(2)(b).

This complaint was originally assigned to Inv. Nathaniel Flack and was reassigned to Inv. Vasquez on March 19, 2018.

### Findings and Recommendations

#### **Allegation A - Discourtesy: Sergeant Frank Arnedos acted discourteously toward § 87(2)(b)**

§ 87(2)(b) testified that he went to the stationhouse to pick up his children from his ex-wife pursuant to a custody agreement (BR01). § 87(2)(b) did not see his children and did not see his ex-wife. § 87(2)(b) spoke with Sgt. Arnedos who informed him that they were not going to give him the children because his ex-wife accused him of being intoxicated, which § 87(2)(b) denied. § 87(2)(b) noticed his ex-wife and children being led outside of the stationhouse. Sgt. Arnedos waved mockingly at § 87(2)(b) and said, “And you’re not going to see your children again.”

Sgt. Arnedos and Sgt. Lopez provided the following generally consistent account of the incident (BR02-03). § 87(2)(b)'s ex-wife reported to officers that she did not want to give § 87(2)(b) her children because he was intoxicated, which both officers also believed to be the case after dealing with § 87(2)(b). Sgt. Arnedos and Sgt. Lopez both spoke with § 87(2)(b) and explained to him that they could not compel his ex-wife to turn over custody of the children. § 87(2)(b) became irate and repeatedly insisted that he wanted his children or to be given a breathalyzer test. Meanwhile, § 87(2)(b)'s ex-wife and children were escorted through a back entrance of the stationhouse. Sgt. Arnedos denied that he made any waving gestures, mocked § 87(2)(b) or told him that he was not going to see his children again. Sgt. Lopez did not witness these actions.

Requests for stationhouse video yielded negative results and there was no BWC or other video footage of this incident.

Patrol Guide 203-09 states that officers must be courteous and respectful in their conduct with the public (BR04).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

**Allegation B – Abuse of Authority: Sergeant Freddy Lopez refused to provide his shield number to** § 87(2)(b)

§ 87(2)(b) testified that he called 9-1-1 after Sgt. Arnedos refused to make a report about the officers refusing to help him. The operator encouraged § 87(2)(b) to obtain the shield numbers of officers he was dealing with. § 87(2)(b) began asking officers for their shield numbers. § 87(2)(b) alleged that Sgt. Lopez refused to provide his shield number.

The investigation received audio recordings of the 9-1-1 calls placed by § 87(2)(b) during this incident (BR05-06). In one of the recordings, § 87(2)(b) is heard asking officers for their shield numbers after the 9-1-1 operator asked him if he knew the shield numbers of the officers he was interacting with. The officers' responses are not clearly audible. However, § 87(2)(b) recites the numbers back to the operator as they are provided to him. One of the shield numbers repeated by § 87(2)(b) was "5327" which is Sgt. Lopez' shield number.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Unfounded**.

**Allegation C – Abuse of Authority: An officer refused to provide his shield number to**

§ 87(2)(b)

**Allegation D – Discourtesy: An officer spoke discourteously to** § 87(2)(b)

As described above, § 87(2)(b) testified that he went around asking multiple officers for their shield numbers. He described one of these officers as a white or Hispanic male who had a medium tone skin complexion, had a stocky build, stood 6'1" tall, was in his early 30s, and was dressed in plainclothes. This plainclothes officer refused to provide his shield number to § 87(2)(b). After § 87(2)(b) was arrested and was being processed at the desk, the same plainclothes officer told him, "You're a real asshole, you know that?"

The 28<sup>th</sup> Precinct roll call reflected that PO John Paul Pennacchia, PO Petr Janak, and PO Michael Dappolonia were the anti-crime officers on duty at the time of the incident (BR07). All three officers denied having any recollection of the incident and denied they committed any of the alleged conduct (BR08-10).

Sgt. Lopez and Sgt. Arnedos testified they did not observe any plainclothes officer interacting with § 87(2)(b) during this incident.

PO Pennacchia, PO Janak, and PO Dappolonia all generally match the physical description provided by § 87(2)(b) (BR11). PO Pennacchia is a § 87(2)(b)-old white male, § 87(2)(b) and has an average build. PO Janak is a § 87(2)(b)-old white male, § 87(2)(b), and has an

average build. PO Dappolonia is a § 87(2)(b)-old white male, § 87(2)(b), and has an average build.

Event documents revealed § 87(2)(b) made his first call to 9-1-1 at 7:45 p.m (BR12). An entry in the 28<sup>th</sup> command log revealed that the aforementioned anti-crime officers were present for duty at 6:10 p.m (BR13). An entry at 7:30 p.m. states that Deputy Commissioner Ruel Stephenson, a black male, visited the stationhouse. § 87(2)(b)'s arrest entry was made at 8:06 p.m. No other entries in the command log reveal any possible subject officers present around the time of the incident.

The 28<sup>th</sup> Precinct roll call and interrupted patrol log did not reveal any other potential plainclothes officers on duty who may have been present at the stationhouse (BR14).

In the 9-1-1 audio recording discussed above, § 87(2)(b) asks an officer for his shield number. Someone responds, and while it is not entirely clear, the number provided may be "4801." § 87(2)(b) then repeats questioningly, "34841?" Someone, and it is unclear if it is the same person, says, "911." § 87(2)(b) then complains to the 9-1-1 operator that he believed the officers were providing him with fake shield numbers. A search of the MOS roster in CTS did not reveal any officers assigned to the 28<sup>th</sup> Precinct with a shield number approximating any of the shield number combinations contained in the audio recording. These shield numbers are not similar to the shield numbers of any of the aforementioned anti-crime officers.

§ 87(2)(g)

Therefore, it is recommended that **Allegations C** and **D** be closed as **officer unidentified**.

#### **Civilian and Officer CCRB Histories**

- This is the fourth complaint filed by § 87(2)(b) with the CCRB (BR15). § 87(2)(b) discourteously to him which were closed by the Board as complainant uncooperative.
- Sgt. Arnedos has been a member of the service for 13 years, has no substantiated allegations, § 87(2)(g)
- Sgt. Lopez has been a member of the service for 15 years, has no substantiated allegations, § 87(2)(g)

#### **Mediation, Civil and Criminal Histories**

- This complaint was not suitable for mediation due to the arrest of § 87(2)(b)
- The NYC Comptroller's Office responded to a request on April 10, 2018 indicating that no notice of claim has been filed regarding this incident (BR16).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

---

Squad No.: 5

Investigator: \_\_\_\_\_  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date